

26STCV14614 26STCV14614

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Case Number: 26STCV14614 Hearing Date: September 11, 2026 Dept: 408

Defendants BreakThru Beverage California, LLC, Alberto Torres, and Ryder Truck Rental LT's Motion to Transfer Venue is GRANTED.

I.

BACKGROUND

On May 6, 2026, Plaintiffs Peter Ussery and Laurie Ussery ("Plaintiffs") filed a complaint against Defendants BreakThru Beverage California, LLC ("BreakThru"), Alberto Torres ("Torres"), and Ryder Truck Rental LT ("Ryder", collectively "Defendants") alleging causes of action for:

1.

Motor Vehicle Negligence; and

2.

General Negligence.

On June 22, 2026, Defendants filed an answer to Plaintiffs' complaint.

On June 23, 2026, Defendants filed this Motion to Transfer Venue. On July 21, 2026, Plaintiffs filed an opposition. On July 22, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

The general venue rule is that "the superior court in the county where the defendants or some of them reside at the commencement of

the action is the proper court for the trial of the action.’

[Citation.]” (Fontaine v. Superior Court (2009) 175 Cal.App.4th 830, 837.) Venue where the plaintiff has chosen to file the action is presumed proper. (Battaglia Enterprises, Inc. v. Superior Court (2013) 215 Cal.App.4th 309, 313-314.) The burden is on the moving party to defeat the plaintiff’s presumptively correct choice of court. (Ibid.)

A party can move to

transfer venue from a proper county to another county when the party can prove that such change of venue will promote convenience of witnesses and the ends of justice. (Code Civ. Proc., § 397, subd. (c); Peiser v. Mettler (1958)

50 Cal.2d 594, 607.) ȳ The

moving party must file affidavits or declarations that show (1) the names of each witness expected to testify for both parties, (2) the substance of their expected testimony, (3) whether the witness has been deposed or has given a statement, (4) the reasons why it would be inconvenient for the witnesses to appear, and (5) the reasons why the ends of justice would be promoted by a transfer to a different county.ȳ (Juneau v. Juneau (1941) 45 Cal.

App. 2d 14, 15-16.)ȳȳȳȳȳ

The granting or refusal of motion for change of venue for the convenience ofȳwitnessesȳrestsȳlargely inȳsound discretion of the court. (Malloy v. Superior Courtȳ(2022) 83 Cal.App.5th 543, 560.) Burden of proof is on the moving party to show convenience of witnesses and ends of justice will be met by transferring venue. (Hecker v. Rossȳ(1960) 183 Cal.App.2d 30, 33.)

III.

DISCUSSION

Defendants move to transfer venue to Mariposa County on the grounds that it would promote the ends of justice and the convenience of witnesses pursuant to Code of Civil Procedure section 397(c). (Motion, at p. 3.) In support, Defendants contend that the instant action arises from a vehicle collision that occurred on July 25, 2024, where Plaintiffs were operating a vehicle on Southside Drive in Yosemite Valley, California. (Id., at pp. 3-4.) Defendants argue that Mariposa County is a proper venue for this action because it is where the events giving rise to Plaintiffs’ claims occurred, and where their alleged injuries were suffered. (Ibid.)

Defendants also contend that all known percipient witnesses in this action reside near either Mariposa County or Sacramento County, including the Park

Ranger, R. Puccinelli ("Puccinelli"), who investigated the subject collision and took witness statements, and the physicians who treated Plaintiffs for their injuries. (Id., at p. 5-7.) Defendants further argue that Plaintiffs reside in El Dorado County and Defendant Torres resides in Solano County, making Mariposa County a more convenient venue. (Ibid.)

In opposition, Plaintiffs concede that Mariposa County is a proper venue, in addition to Solano County and Los Angeles County. (Opp., at pp. 1-2.) However, Plaintiffs argue that transferring venue to Mariposa County would not promote the interests of justice as it is likely that Puccinelli will not be permitted to testify as his testimony is merely cumulative of the parties' own anticipated testimony, photographic evidence the parties can authenticate themselves, and a police report that is independently inadmissible; and, separately, his status as a federal employee subjects any testimony to the Touhy framework under 43 C.F.R. §§ 2.281–2.284. (Id., at pp. 3-5.) Plaintiffs also contend that Defendants misstate the residence of Witness Dr. Ryan Mattie who resides in Los Angeles County. (Id., at pp. 5-6.) Plaintiffs also argue that travel to Los Angeles is far more convenient than Mariposa County for all remaining non-party treating witnesses who reside outside Mariposa County. (Id., at pp. 6-8.)

The court finds that venue is proper in Mariposa County and the convenience of the witnesses and the ends of justice would be promoted by a change in venue as most of the witnesses to the facts alleged in Plaintiffs' complaint are located closer to Mariposa County. When a party moves to transfer venue for the convenience of witnesses, the party must provide affidavits setting forth "the name of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient." (Peiser, *supra*, 50 Cal.2d at 607.) Defendants provide sufficient information in support of a transfer at this stage of litigation. (Danker Decl., ¶¶ 2-15.) Plaintiffs also concede that they merely filed the instant action in Los Angeles County as BreakThru's principal place of business is located there. (Opp., at p. 2.)

Accordingly, the motion is granted.

IV.

CONCLUSION

Defendants BreakThru Beverage

California, LLC, Alberto Torres, and Ryder Truck Rental LT's Motion to Transfer
Venue is GRANTED.